

House File 954

H-1152

1 Amend House File 954 as follows:

2 1. By striking page 1, line 1, through page 2, line 26, and
3 inserting:

4 <DIVISION I

5 ADMINISTRATION OF ELECTIONS

6 Section 1. Section 9E.6, subsection 3, paragraph b,
7 subparagraph (1), Code 2025, is amended to read as follows:

8 (1) The state commissioner of elections shall, upon
9 the written request of a party to the contest, certify the
10 eligibility of a program participant to vote or the validity
11 of a program participant's absentee ballot. A written request
12 submitted under this paragraph "b" must contain the ~~voter~~
13 voter's four-digit personal identification number affixed to
14 the program participant's absentee ballot.

15 Sec. _____. Section 39.2, subsection 1, paragraph a, Code
16 2025, is amended to read as follows:

17 a. All special elections which are authorized or required
18 by law, unless the applicable law otherwise requires, shall
19 be held on Tuesday. A special election shall not be held on
20 the first, second, third, and fourth Tuesdays preceding and
21 following the primary and the general elections or on the
22 first, second, and third Tuesdays preceding and following a
23 city or school election.

24 Sec. _____. Section 43.18, subsection 9, Code 2025, is amended
25 to read as follows:

26 9. A statement that the candidate is aware that the
27 candidate is disqualified from holding office if the candidate
28 has been convicted of a felony or other infamous crime and
29 the candidate's rights have not been restored by the governor
30 or by the president of the United States. This subsection
31 does not apply to candidates for federal office. The state
32 commissioner shall prescribe a separate affidavit of candidacy
33 for candidates for federal office.

34 Sec. _____. Section 43.67, subsection 2, paragraph i, Code
35 2025, is amended to read as follows:

1 *i.* A statement that the candidate is aware that the
2 candidate is disqualified from holding office if the candidate
3 has been convicted of a felony or other infamous crime and
4 the candidate's rights have not been restored by the governor
5 or by the president of the United States. This paragraph
6 does not apply to candidates for federal office. The state
7 commissioner shall prescribe a separate affidavit of candidacy
8 for candidates for federal office.

9 Sec. _____. Section 44.3, subsection 2, paragraph i, Code
10 2025, is amended to read as follows:

11 *i.* A statement that the candidate is aware that the
12 candidate is disqualified from holding office if the candidate
13 has been convicted of a felony or other infamous crime and
14 the candidate's rights have not been restored by the governor
15 or by the president of the United States. This paragraph
16 does not apply to candidates for federal office. The state
17 commissioner shall prescribe a separate affidavit of candidacy
18 for candidates for federal office.

19 Sec. _____. Section 45.3, subsection 9, Code 2025, is amended
20 to read as follows:

21 9. A statement that the candidate is aware that the
22 candidate is disqualified from holding office if the candidate
23 has been convicted of a felony or other infamous crime and
24 the candidate's rights have not been restored by the governor
25 or by the president of the United States. This subsection
26 does not apply to candidates for federal office. The state
27 commissioner shall prescribe a separate affidavit of candidacy
28 for candidates for federal office.

29 Sec. _____. Section 47.1, subsections 1, 6, 7, and 8, Code
30 2025, are amended to read as follows:

31 1. The secretary of state is designated as the state
32 commissioner of elections and shall supervise the activities of
33 the county commissioners of elections. There is established
34 within the office of the secretary of state a division of
35 elections which shall be under the direction of the state

1 commissioner of elections. The state commissioner of
2 elections may appoint a person to be in charge of the division
3 of elections who shall perform the duties assigned by the
4 state commissioner of elections. The state commissioner of
5 elections shall prescribe uniform election practices and
6 procedures, shall prescribe the necessary forms required
7 for the conduct of elections, shall assign a number to each
8 proposed constitutional amendment and statewide public measure
9 for identification purposes, and shall adopt rules, pursuant to
10 chapter 17A, to carry out [this section](#). The state commissioner
11 of elections may issue guidance and directives that ~~is~~ are not
12 subject to the rulemaking process to clarify election laws and
13 rules.

14 6. The state commissioner may, at the state commissioner's
15 discretion, examine the records of a commissioner to evaluate
16 complaints and to ensure compliance with the provisions of
17 chapters 39 through 53. This examination shall include but not
18 be limited to assessments conducted or authorized by private or
19 government entities to evaluate a county's security readiness
20 for elections-related technology or physical facilities. The
21 state commissioner shall adopt rules pursuant to [chapter 17A](#) to
22 require a commissioner to provide written explanations related
23 to examinations conducted pursuant to [this subsection](#). Any
24 information that is requested by or in the possession of the
25 state commissioner pursuant to [this chapter](#) shall not lose its
26 confidential status pursuant to [section 22.7, subsection 50](#).

27 7. The state commissioner may share information a county
28 provides to an appropriate government agency to safeguard
29 against cybersecurity or physical threats. A county
30 commissioner of elections shall notify the state commissioner
31 when the county commissioner's office is involved in physical
32 or cybersecurity assessments performed by a federal or state
33 agency or other entity.

34 8. The state commissioner may adopt rules pursuant to
35 chapter 17A to create minimum security protocols applicable

1 to county commissioners of elections and vendors utilized
2 by the state commissioner and county commissioners of
3 elections. If a county fails to adhere to these protocols,
4 the state commissioner may limit access to the statewide voter
5 registration system. If a vendor fails to adhere to these
6 protocols, the state commissioner may limit access to election
7 infrastructure.

8 Sec. _____. Section 47.2, subsection 1, Code 2025, is amended
9 to read as follows:

10 1. The county auditor of each county is designated as the
11 county commissioner of elections in each county. The county
12 commissioner of elections shall conduct voter registration
13 pursuant to [chapter 48A](#) and conduct all elections within the
14 county. The county commissioner of elections does not possess
15 home rule powers with respect to the exercise of powers or
16 duties related to the conduct of elections prescribed by
17 statute or rule, or guidance or directives issued pursuant to
18 section 47.1.

19 Sec. _____. Section 48A.26A, subsection 2, Code 2025, is
20 amended to read as follows:

21 2. If the acknowledgment is returned as undeliverable by
22 the postal service, the commissioner shall attempt to contact
23 the voter by forwardable mail. If a response is not received
24 from the voter within fourteen days after the notice is mailed,
25 the commissioner shall change the status of the registration
26 to inactive status and shall immediately notify the state
27 registrar of voters, the county sheriff, and the county
28 attorney.

29 Sec. _____. Section 48A.37, subsection 1, Code 2025, is
30 amended to read as follows:

31 1. Voter registration records, including voter registration
32 forms, shall be maintained in an electronic medium on the
33 statewide voter registration system. A history of local
34 election participation shall be maintained as part of the
35 electronic record for at least two general, primary, school,

1 and city elections. Absentee voting shall be recorded for
2 the previous two general and primary elections. After each
3 election, the county commissioner shall update telephone
4 numbers provided by registered voters pursuant to section
5 49.77.

6 Sec. _____. NEW SECTION. **49.29 Electronic election register**
7 **and poll book.**

8 1. The commissioner may use an electronic election register
9 or election poll book in lieu of a paper register or poll book
10 if the electronic election register or poll book is a product
11 that has been certified for use in this state by the state
12 commissioner.

13 2. The state commissioner shall adopt rules pursuant to
14 chapter 17A for certification standards for electronic election
15 registers and election poll books. The certification standards
16 must include operational and security standards.

17 Sec. _____. Section 50.12, Code 2025, is amended to read as
18 follows:

19 **50.12 Return and preservation of ballots.**

20 Immediately after making the proclamation, and before
21 separating, the board members of each precinct in which votes
22 have been received by paper ballot shall enclose in an envelope
23 or other container all ballots which have been counted by them,
24 except those endorsed "Rejected as double", "Defective", or
25 "Objected to", and securely seal the envelope. The signatures
26 of all board members of the precinct shall be placed across
27 the seal or the opening of the container so that it cannot
28 be opened without breaking the seal. The precinct election
29 officials shall return all the ballots to the commissioner,
30 who shall carefully preserve them for ~~six~~ twenty-two months.
31 ~~Ballots from elections for federal offices shall be preserved~~
32 ~~for twenty-two months.~~ The sealed packages containing voted
33 ballots shall be opened only for an official recount authorized
34 by [section 50.48](#), [50.49](#), or [50.50](#), for an election contest
35 held pursuant to [chapters 57 through 62](#), to conduct an audit

1 pursuant to [section 50.51](#), or to destroy the ballots pursuant
2 to [section 50.19](#).

3 Sec. _____. Section 50.19, subsection 1, Code 2025, is amended
4 to read as follows:

5 1. The commissioner may destroy precinct election
6 registers, the declarations of eligibility signed by voters,
7 and other material pertaining to any election in which federal
8 offices are not on the ballot, except the tally lists and
9 abstracts of votes which have not been electronically recorded,
10 ~~six~~ twenty-two months after the election if a contest is not
11 pending. If a contest is pending, all election materials shall
12 be preserved until final determination of the contest or until
13 twenty-two months after the election, whichever is later.
14 Before destroying the election registers and declarations
15 of eligibility, the commissioner shall prepare records as
16 necessary to permit compliance with [chapter 48A, subchapter V](#).
17 ~~Nomination papers for primary election candidates for state and~~
18 ~~county offices shall be destroyed ten days before the general~~
19 ~~election, if a contest is not pending.~~

20 Sec. _____. Section 53.2, subsection 4, paragraph c, Code
21 2025, is amended to read as follows:

22 c. For purposes of [this subsection](#), “*voter verification*
23 *number*” means the registered voter’s driver’s license number or
24 nonoperator’s identification card number assigned to the voter
25 by the department of transportation or the registered voter’s
26 four-digit personal identification number assigned to the voter
27 by the state commissioner pursuant to section ~~47.7~~ 48A.10A,
28 subsection ~~2~~ 1.

29 Sec. _____. Section 53.10, subsection 2, paragraph b, Code
30 2025, is amended to read as follows:

31 b. For purposes of [this subsection](#), “*voter verification*
32 *number*” means the registered voter’s driver’s license number or
33 nonoperator’s identification card number assigned to the voter
34 by the department of transportation or the registered voter’s
35 four-digit personal identification number assigned to the voter

1 by the state commissioner pursuant to section ~~47.7~~ 48A.10A,
2 subsection ~~2~~ 1.

3 Sec. _____. Section 53.23, subsection 3, paragraph a, Code
4 2025, is amended to read as follows:

5 a. The commissioner shall set ~~the~~ a convening time for the
6 board of no later than 9:00 a.m. on election day, allowing a
7 reasonable amount of time to complete counting all absentee
8 ballots by 10:00 p.m. on election day.

9 Sec. _____. Section 54.5, subsection 3, Code 2025, is amended
10 to read as follows:

11 3. Each elector nominee and alternate elector nominee
12 of a political party or group of petitioners shall execute
13 the following pledge on a form prescribed by the state
14 commissioner, which shall accompany the submission of the
15 corresponding names to the state commissioner:

16 If selected for the position of elector, I agree to serve
17 and to mark my ballots for president and vice president for
18 the nominees for those offices of the party (or group of
19 petitioners) that nominated me.

20 Sec. _____. Section 54.5, Code 2025, is amended by adding the
21 following new subsection:

22 NEW SUBSECTION. 5. An objection to a nomination made under
23 this section on any grounds other than the legal sufficiency
24 of the certificate of nomination shall not be sustained. The
25 certificate of nomination shall be presumed valid.

26 Sec. _____. Section 384.19, subsection 1, Code 2025, is
27 amended to read as follows:

28 1. Within a period of ten days after the final date that
29 a budget or amended budget may be certified to the county
30 auditor, persons affected by the budget may file a written
31 protest with the county auditor specifying their objections
32 to the budget or any part of it. A protest must be signed by
33 registered voters equal in number to one-fourth of one percent
34 ~~of the votes cast for governor in the last preceding general~~
35 ~~election in the city, but the number shall not be less than~~

1 ~~ten persons and the number need not be more than one hundred~~
2 persons population of the city according to the most recent
3 federal decennial census or special census, whichever is
4 later.>
5 2. By striking page 4, line 18, through page 5, line 6.
6 3. Page 5, line 19, by striking <preceding general election>
7 and inserting <three preceding general ~~election~~ elections>
8 4. Page 5, line 21, by striking <~~two~~ ten> and inserting
9 <two>
10 5. Page 5, line 22, by striking <that election> and
11 inserting <~~that election~~ those elections>
12 6. Page 5, lines 32 and 33, by striking <preceding general
13 election> and inserting <three preceding general ~~election~~
14 elections>
15 7. Page 5, line 34, by striking <~~two~~ ten> and inserting
16 <two>
17 8. Page 6, line 1, by striking <that election> and inserting
18 <~~that election~~ those elections>
19 9. Page 6, line 10, by striking <preceding general election>
20 and inserting <three preceding general ~~election~~ elections>
21 10. Page 6, line 12, by striking <~~two~~ ten> and inserting
22 <two>
23 11. Page 6, line 13, by striking <that election> and
24 inserting <~~that election~~ those elections>
25 12. Page 6, line 21, by striking <~~two~~ ten> and inserting
26 <two>
27 13. Page 6, lines 22 and 23, by striking <preceding general
28 election> and inserting <three preceding general ~~election~~
29 elections>
30 14. By renumbering as necessary.

HARRIS of Appanoose